

Homeowners Assn., Inc. v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis. A plaintiff who is genuinely ignorant of a defendant’s true name may name that defendant as a Doe in his complaint; later, upon finding out the defendant’s true name, he may amend the complaint to name the Doe and enjoy relation back to the complaint’s filing date for purposes of the statute of limitations. (*McClatchy v. Coblentz, Patch, Duffy & Bass, LLP* (2016) 247 Cal.App.4th 368, 371.) However, this benefit is only available to a plaintiff who was actually ignorant of the facts establishing a cause of action against that Doe at the time of filing; if the plaintiff knew the facts supporting his claim against the Doe, or reasonably should have known, he cannot use the benefit. (*Id.* at pp. 371-372.) The key question is what facts the plaintiff knew and not whether he understood that he had a legal claim based on those facts. (*Id.* at p. 372.)

The face of the complaint does not reveal that Plaintiff actually or constructively knew of her claim against ADRIAN at the time of filing. ADRIAN’s proffered evidence demonstrating her actual or constructive knowledge is not proper on a demurrer, which looks only to the face of the complaint or to matters judicially noticed. The same standard applies to motions to strike. (Code Civ. Proc. § 437, subd. (a).)

Conclusion. ADRIAN’s demurrer is overruled. ADRIAN’s motion to strike is denied.

DARRICK CHAVIS; ET AL. vs. NEWTEK SMALL BUSINESS FINANCE, LLC; ET AL.
Case No. CU24-06888

Motion to Be Relieved as Counsel

TENTATIVE RULING

Plaintiff Counsel’s unopposed motion to be relieved, as to all three Plaintiffs, are GRANTED. The Case Management Conference date of April 21, 2025 at 9:00 a.m. is confirmed. Plaintiffs’ Counsel is to provide notice to Plaintiffs that the April 25, 2025 Case Management Conference date is confirmed and that Plaintiffs are to appear.

AKBAR WARIS BOISSIERE vs. TRI PROPERTY; ET AL.
Case No. FCS057866

Motion to Compel Arbitration

TENTATIVE RULING